

OREGON STATE HOSPITAL

POLICY

SECTION 5: Human Resources Management **POLICY: 5.009**

SUBJECT: Staff and Patient Relationships

POINT PERSON: Chief Financial Officer/Chief Operations Officer

APPROVED: Dolores Matteucci
Dolores Matteucci
Superintendent

DATE: February 28, 2024

SELECT ONE: ☐ New policy ☒ Minor/technical revision of existing policy
☐ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy establishes Oregon State Hospital (OSH) parameters for staff and patient relationships.
- B. This policy applies to all staff.

II. POLICY

- A. OSH recognizes professional relationship boundaries between staff and patients are essential to effective and ethical patient care. A relationship between a staff member and a patient must be guided by and be consistent with therapeutic relationship objectives.
- B. Staff may not establish a relationship with a patient (e.g., develop personal friendships, make after-work social arrangements) beyond the level directed by the staff member's position description and professional therapeutic relationship boundaries.
 - 1. Questions regarding the propriety of a relationship with a patient must be referred in writing to the staff member's supervisor and Human Resources for review and counsel. The supervisor must respond in writing and send a copy to Human Resources.
 - 2. Staff may not accept a gift from a patient unless the gift is made by the patient, is worth less than \$3.00, stays in the work area, and the patient's IDT approved the request. Staff may not accept any type of donation from a patient. Any gift from a patient worth less than \$3.00 and which is considered abandoned or unreturnable must be given to Volunteer Services Donations

Program (see OSH policy 4.011, "Donations, Contributions, and Charitable Fundraising").

- C. Staff may not exploit the patient emotionally, sexually (e.g., inappropriate touching, kissing, fondling), financially, or in any other way (see OSH policy 7.008, "Patient Abuse or Mistreatment Allegation Reporting"). Staff may not conduct economic transactions, borrow, give, or loan services or personal property, including money with a patient (see OSH policy 4.010, "Patient Funds"). Exploitation of a patient must be reported in accordance with OSH Policy 7.008, "Patient Abuse or Mistreatment Allegation Reporting".
- D. Staff may not discuss personal matters, including other staff's personal lives, with a patient or within a patient's hearing. Self-disclosure may be used on occasion as a planned intervention but only by staff who have appropriate skills and professional training.
- E. Staff must show respect to patients consistent with therapeutic relationship and cultural sensitivity principles.
 - 1. A patient must be addressed respectfully by their first name, last name, or a nickname of their preference.
 - 2. Staff may not use verbally-abusive language or humor to or about a patient, including but not limited to calling names, demeaning, cursing, mocking, or using sexually-provocative language. Staff may not use pet names or terms of endearment which could be considered inappropriate, patronizing, infantilizing, or sexually harassing.
 - 3. Staff must refer a patient's spiritual or religious questions to the interdisciplinary treatment team (IDT) or the Spiritual Care Department.
 - 4. Staff participation in approved hospital-wide or program leisure/recreational activities during work hours is for the sole purpose of engaging participation of patients. Neither employees nor patients shall engage in highly competitive, aggressive sports activities, which expose participants to unnecessary risk of physical injury.
 - 5. When planning or participating in leisure/recreational activities with patients, staff must be aware of and consider the power dynamic between staff and patients. Staff must also be aware of and consider the impact "winning" and/or "losing" may have on the patient.
 - 6. Physical conduct such as "horseplay" or "rough housing" is prohibited.
- F. When a patient is admitted who is known to a staff member (e.g., friend, acquaintance, relative), they must immediately notify their direct supervisor.

Together, they shall collaborate with Human Resources to develop a plan of action such as a change of assignment or other measures.

- G. Staff, including former staff, may not visit a patient at OSH unless an exception is granted by the Superintendent per OSH Policy 8.026, "Visitors to Patients."
- H. When a patient is discharged, staff must terminate the relationship.
 - 1. If there is an extenuating circumstance where an outpatient relationship is necessary, the matter must be referred in writing to the staff member's supervisor for review and approval. The supervisor must respond in writing and send a copy to Human Resources.
 - 2. When an outpatient relationship does exist, staff must document the situation in patient's medical records.
- I. Staff must handle potential conflicts of interest or dual relationships as a result of employment at OSH in accordance with OSH Policy 5.014, "Conflict of Interest".
- J. Oregon State Hospital (OSH) follows all applicable regulations, including federal and state statutes and rules; Oregon Department of Administrative Services (DAS), Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- K. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Dual relationship" means a staff member has both a therapeutic relationship with a patient and a personal relationship with that same patient involving satisfaction of mutual needs (*e.g.*, providing treatment services to a family member or close friend, or developing a close personal relationship with a person *after* having a therapeutic relationship with them).
- B. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).
- C. "Therapeutic relationship" means a planned, purposeful interaction between a staff member and a patient. It is a goal-directed relationship in which the staff member accepts the patient as a human being with dignity and establishes and maintains trust in order to effect a beneficial change in the patient's response to the patient's problems. This type of relationship exists solely for the patient's therapeutic benefit.

IV. RELATED OSH POLICIES AND PROTOCOLS

2.008 Privacy and Security of Patient Information

4.010 Patient Funds

4.011 Donations, Contributions, and Charitable Fundraising

5.004 Valuing Diversity

5.014 Conflict of Interest

5.017 Dress Code for Staff

6.016 Sexual Activity Involving Patients

6.061 Transgender and Gender Non-Conforming Treatment

7.002 Media Access for Patients

7.005 Patient Rights

7.008 Patient Abuse or Mistreatment Allegation Reporting

8.019 Staff Response to Alleged Criminal Acts and Contraband

8.026 Visitors to Patients

8.037 Patient Property and Valuables: Handling and Storage

V. REFERENCES

Oregon Administrative Rule §§ 309-102-0100 — 309-118-0150.

Oregon Administrative Rule §§ 419-120-0000 — 419-120-0070.

Oregon Revised Statute §§ 163.448 — 163.454.

Oregon Revised Statute § 426.385.

Shared Services. Conflict of interest, DHS-060-002. Author.